

Smt. Sunita Kalra v. Paschimanchal Vidyut Vitran Nigam Limited

High Court of Judicature at Allahabad · Division Bench · 14 August 2018 · Writ-C No. 27509 of 2018 · **Writ disposed; connection to be granted on indemnity bond**

HEADNOTE

A tenant already given a temporary supply cannot be denied a permanent connection merely because the landlord has applied under Section 21 of the U.P. Act XIII of 1972 for release of the shop. The licensee must consider and grant the connection on a Code-compliant application, an indemnity bond under Clause 4.4 read with Annexure 4.2, and fulfilment of the other requirements of the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Smt. Sunita Kalra, tenant of House/Shop No. 2C/2949/11, Court Road, opposite the Civil Court, Saharanpur, sought mandamus for a 2 kW commercial (LMV-2) permanent connection on her application dated 25 June 2018. A temporary connection had already been given. The licensee withheld the permanent connection because the landlord had applied under Section 21 of the U.P. Act XIII of 1972 for release of the shop. Counsel for the department relied on Clause 4.4 of the U.P. Electricity Supply Code, 2005 and Annexure 4.2 (indemnity bond).

REUSABLE CONSTRUCTIONS

1. A pending landlord application for release of a tenanted shop under Section 21 of the U.P. Act XIII of 1972 does not disentitle the tenant to a supply connection under the 2005 Code. ¶ 6
2. Permanent connection to a tenant is to be granted on a Code-compliant application, an indemnity bond under Clause 4.4 read with Annexure 4.2, and fulfilment of other Code requirements. ¶ 7

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

tenant connection despite pending rent-release proceedings

HOLDING

An admitted tenant is entitled to an electricity connection under the U.P. Electricity Supply Code, 2005 notwithstanding a pending landlord application under Section 21 of the U.P. Act XIII of 1972 for release of the tenanted shop. The licensee must consider and grant the connection on an application made in the prescribed manner, an indemnity bond as contemplated by Clause 4.4 read with Annexure 4.2, and fulfilment of the other requirements of the Code. ¶ 6-7

PRINCIPLE TAGS

clause-4.4-occupant-connection-on-indemnity-bond A tenant already given a temporary supply cannot be denied a permanent connection merely because the landlord has applied under Section 21 of the U.P. Act XIII of 1972 for release of the shop.. ¶ 6-7